SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

Proceeding: Meridian's limited response.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

# Meridian Response Regarding Shared Record and Count II

Filed November 24, 2025 — District ECF No. 50

Defendant Meridian Silt Holdings, LLC submits this limited response to Copper Kestrel Logistics, LLC's motion for partial summary judgment and Asterglen Freight Software, Inc.'s opposition. Copper Kestrel seeks judgment only on Count I, the $480,000 contract claim asserted against Copper Kestrel. Meridian is not a party to the Pilot License and takes no position on the ultimate construction of Section 9.2. Meridian files this response because the parties' submissions discuss Meridian's services, its engineer's testimony, and communications also placed at issue by Count II.

Count II seeks $360,000 from Meridian for alleged interference. It remains pending regardless of how the Court decides Copper Kestrel's motion. A ruling on Count I therefore should not decide Meridian's intent, adopt either side's account of disputed oral permission, or characterize Meridian's technical work as independently wrongful. The shared evidence can be described without resolving those matters. Meridian asks the Court to distinguish facts needed to decide the notice-and-cure issue from facts that belong to the later adjudication of Count II and Copper Kestrel's counterclaim.

# Meridian's engagement and limited authority

Copper Kestrel retained Meridian under a statement of work dated June 14, 2024. The engagement called for integration, readiness, validation, and related technical tasks concerning the proposed terminal expansion. Asterglen was not a party to that statement of work. Meridian did not receive written authority under it to amend the April 15 Pilot License, bind Asterglen to commercial terms, or approve a permanent increase from twelve licensed terminals.

Meridian knew that Copper Kestrel had proposed twenty-nine additions on June 3 and that the commercial change order remained unsigned. Meridian also received operational directions after Asterglen's June 10 communication imposed conditions on a controlled load test. Its personnel assisted with configuration and validation as requested by Copper Kestrel. By July 1 the system reflected forty-one provisioned identifiers, consisting of the original twelve and the proposed twenty-nine. Provisioning alone does not establish the business purpose of every event processed through an identifier.

These circumstances may inform both pending claims, but they do not establish interference. Meridian disputes that it intentionally induced Copper Kestrel to violate a known contractual restriction. It understood its role as technical support for activity being discussed by the contracting parties. Whether particular use exceeded the June 10 conditions and whether Copper Kestrel communicated the scope accurately remain disputed. The partial-summary-judgment motion can be decided, if at all, without making findings on those questions.

# The July 8 conference has competing accounts

Meridian's engineer participated in the July 8 videoconference with representatives of Asterglen and Copper Kestrel. The engineer recalls permission to continue the current test while commercial discussions remained open. The engineer did not understand the statement as an executed amendment, a permanent license grant, or an express waiver of Section 9.2. That testimony appears in the excerpts filed as ECF No. 49-3.

The other witnesses remember the conversation differently. Copper Kestrel's operations representative understood Asterglen to allow then-current activity to continue, with monitoring and no additional terminals. Asterglen's corporate representative says it permitted only the controlled testing previously described in writing and did not authorize expanded production. No recording or agreed verbatim transcript resolves the difference. Brief notes using “continue current test” and “paperwork open” are consistent with more than one account when read without the surrounding exchange.

Meridian therefore objects to any requested finding that the July 8 call either conclusively authorized all current activity or conclusively informed Meridian that every expanded use was prohibited. The existence and date of the conference are undisputed; its precise wording, meaning, and scope are not. Copper Kestrel has stated that its Count I motion does not depend on accepting its broader recollection. The Court can address Section 9.2 on that same limited basis while preserving all parties' ability to present the conflicting testimony later.

# Technical activity from the audit through July 25

Asterglen completed its internal audit on July 18 and identified forty-one provisioned identifiers. The audit questioned whether activity at the twenty-nine additions remained within the written testing conditions. Meridian did not prepare the audit and did not treat it as an agreed determination of contractual noncompliance. No evidence shows that Asterglen delivered the audit to Copper Kestrel as a written Section 9.2 notice carrying a fifteen-calendar-day cure date.

Asterglen's July 22 communication declared immediate termination, disabled a shared staging credential, and demanded $480,000. Meridian continued technical work through July 25. Its tickets concern inventory, mitigation, session closure, continuity, reduction, and validation. That work did not add a terminal beyond the forty-one already reflected in the configuration. The parties dispute how to characterize access and activity after July 22, and Meridian does not concede that its mitigation work constituted a new act of interference.

A later controlled exercise showed that reducing the configuration from forty-one identifiers to twelve was technically feasible within three business days. The exercise concluded without loss of completed shipment information, although one cached-route warning required correction. The declarant also identified differences between that preserved environment and live July traffic. The exercise is relevant to feasibility; it does not establish Meridian's state of mind during the original events or prove how Copper Kestrel would have responded to a timely formal notice.

# Shared evidence does not merge the claims

Count I and Count II arise under different legal theories and run against different defendants. Count I alleges a contract breach by Copper Kestrel and requests $480,000. Count II alleges interference by Meridian and requests $360,000, subject to avoiding duplicate recovery. Copper Kestrel's counterclaim seeks $120,000 for costs allegedly resulting from Asterglen's immediate disablement. That counterclaim also remains pending.

The claims nevertheless share substantial evidence. Each may require testimony about the June 3 proposal, Asterglen's June 10 conditions, Meridian's June 14 engagement, the forty-one identifiers provisioned by July 1, the July 8 discussion, the July 18 audit, and activity through July 25. The participants' knowledge and the meaning of their communications are especially important to Count II. Depending on later findings, opposing monetary awards could create a potential setoff. That practical overlap counsels against unnecessary factual declarations in an order limited to Count I.

Meridian does not argue that shared proof prevents the Court from applying Section 9.2 to Asterglen's contract claim. It asks only that the Court avoid deciding more than the motion presents. A conclusion that Asterglen provided zero days between its July 22 notice and the remedies announced would not determine whether Meridian intended to interfere. Likewise, a conclusion about the contract remedy would not establish Asterglen's liability for the counterclaim or the amount of any offset.

# Requested limitation of any ruling

If the Court grants Copper Kestrel's motion, the order should state that judgment concerns Count I only. It should leave Count II against Meridian and Copper Kestrel's $120,000 counterclaim pending. It also should preserve the parties' competing positions on the July 8 permission, Meridian's understanding, technical causation, and the amount of any damages. None of those issues must be resolved to determine whether Asterglen satisfied the written-notice and fifteen-calendar-day sequence in Section 9.2.

If the Court denies the motion, the same limits should apply. Denial would mean only that Copper Kestrel did not establish entitlement to judgment on Count I at this stage. It would not validate Asterglen's interference theory or decide that Meridian exceeded its authority. Meridian remains entitled to contest every element of Count II and to rely on the contracting parties' own communications, including the unresolved July 8 accounts.

For those reasons, Meridian respectfully requests a carefully confined disposition. The Court may identify the undisputed sequence surrounding Asterglen's July 22 demand while expressly declining to find which oral account is correct. The order should not adjudicate Count II, Copper Kestrel's counterclaim, the claimed $360,000 or $120,000 amounts, potential setoff, or Meridian's defenses. A limited ruling will preserve the issues that require testimony and avoid giving an interlocutory contract decision unintended effect in the remaining proceedings.

Respectfully submitted,

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